IN CONTEXT

FOCUS
Human rights

BEFORE
1772 The case of an escaped slave in *Somerset* v. *Stewart* sets a precedent for the illegality of slavery in England.

1787 British campaigners form the Society for Effecting the Abolition of the Slave Trade.

AFTER
1865 The US abolishes slavery.

1888 Brazil's *Lei Áurea* (Golden Law) makes it the last country in the West to ban slavery.

1926 The League of Nations' Slavery Convention requires member states to eliminate slavery from their territories.

1948 The Universal Declaration of Human Rights states that "no one shall be held in slavery or servitude."

Slavery is a system that treats people as property to be owned and controlled, with no regard for their rights as human beings. It existed in some form in almost every ancient civilization, from Egypt and India to China and Rome, and has persisted through medieval to modern times. Slavery was a major industry in Europe from the 16th to the 18th centuries, until protests against the trade's atrocities became widespread.

The trade triangle

In medieval Africa, slaves had been traded between countries or tribes and to supply Islamic countries in Arabia. Portuguese and Spanish navigators discovered the African slave markets in the mid-15th century, and a slave trade triangle began to emerge in the 16th century. European ships took goods to Africa's west coast to exchange for slaves. The ships crossed the Atlantic, on the Middle Passage, to sell their human cargoes in South America (especially Brazil) or the Caribbean, mostly to plantations. Then tobacco, sugar, molasses, and rum (and later cotton) filled the ships for the homeward voyages.

Conditions during the 5,000-mile (8,000-km) Middle Passage were horrific. Sickness was rife due to brutal treatment, scarce food and water, and acute overcrowding. By 1867, about 2.5 million of 10–12 million Africans had died on ships during the Middle Passage.

White European slavers (slave traders) portrayed slaves as savages to dehumanize them. They even painted themselves as saviors and Africans as lucky to be taken to better lives in the New World. Slavers made huge profits, and those involved became rich and powerful. In Britain, the West India Lobby of slavers and plantation owners included MPs, who incited fears that restricting the trade would aid Britain's rivals, such as France.

By the 17th century, Britain, the Netherlands, France, and Denmark had become major players in the transatlantic slave trade to furnish their respective colonies with labor. Britain controlled two-thirds of the trade, supporting slavers with laws such as a series of Trade and Navigation Acts.

> How does the slave differ from his master, but by chance?
> **Thomas Clarkson**
> ***An Essay on the Slavery and Commerce of the Human Species*, 1786**

Slaves as property

In 1677, the solicitor-general's ruling that "negroes" be classified as property under the Trade and Navigation Acts was confirmed by the *Butts* v. *Penny* case of the same year. Slave owners could now use property law to claim for lost or "damaged" slaves, reducing them to mere commodities.

Many plantation owners brought slaves back to Britain to work as servants. Over the years, a number of slaves had escaped from their masters and appealed to the courts for their freedom, most notably in the case of *Somerset* v. *Stewart*. James Somerset was a slave who had been brought to England by his owner, Charles Stewart, and had

> I cannot say this case is allowed or approved by the law of England; and therefore [the slave] must be discharged.
> **William Murray, 1st Earl of Mansfield**
> ***Somerset* v. *Stewart* ruling, 1772**